

1.

CASE #	CASE NAME	HEARING NAME
CVPS2405899	SPERRY vs JVTS, INC, A CALIFORNIA CORPORATION COMPANY	MOTION TO BE RELIEVED AS COUNSEL FOR SHEZLEAF, INC.

Tentative Ruling: Defendant Shezleaf's Counsel's Motion to be Relieved as Counsel is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500801	GAUSE vs SARDONI	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS

CASE #	CASE NAME	HEARING NAME
CVRI2500801	GAUSE vs SARDONI	MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES AND TO AWARD MONETARY SANCTIONS

CASE #	CASE NAME	HEARING NAME
CVRI2500801	GAUSE vs SARDONI	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR ADMISSIONS AND TO AWARD MONETARY SANCTIONS

Tentative Ruling: Plaintiff's Motions to Compel are granted in part;

For RFPs: Granted as to requests nos. 1-16 and 22-32.

As to nos. 28-30, granted only as narrowed to communications concerning Plaintiff, the underlying actions, or this litigation. Any privilege claim shall be supported by a privilege log.

Denied as to no. 17.

For FROGs:

Granted as to nos. 4.1, 12.1, 15.1, 17.1, 50.1-50.3, 50.5 & 50.6. Deny as to no. 50.4.

For RFAs:

Granted as to nos. 1, 6, & 7; Denied without prejudice as to nos. 8 to 11 due to the defective separate statement.

Requests for Sanctions are denied.

REQUESTS FOR PRODUCTION

Plaintiff argues that Defendant's responses to Requests for Production, Set One ("RFPs"), nos. 1-17 and 22-32 are unverified, evasive, and not code compliant. He argues that Defendant produced no documents. Plaintiff requests \$3,210 in sanctions.

In opposition, Defendant argues his objections were proper because the requests were vague, burdensome, and sought documents already available to Plaintiff through the MyCase database. He contends that Plaintiff did not meaningfully meet and confer. He requests \$1,530 in cross-sanctions.

In reply, Plaintiff argues that Defendant relied on facially inapplicable boilerplate objections, never produced any documents, and failed to serve promised supplemental responses.

In a motion to compel further responses as to document requests, the moving party must state specific facts demonstrating good cause justifying the discovery sought. (CCP §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance." (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Then, the burden shifts for the opposing party to justify its objections. (*Kirkland*, supra, 95 Cal.App.4th at 98.)

Here, good cause is shown. The requests seek documents concerning Defendant's affirmative defenses, attorney-client relationship, representation, communications, billing, and handling of the underlying actions. Defendant's assertion that documents remain accessible through MyCase does not constitute a statement of compliance or inability to comply.

As to requests nos. 1-14, Plaintiff seeks document supporting Defendant's affirmative defenses. These defenses include limitations (#1), failure to state a claim (#2), laches (#3), estoppel (#4), mitigation (#5), waiver (#6), comparative relief (#7), assumption of risk (#8), consent (#9), comparative fault (#10), apportionment of fault (#11), unclean hands (#12), and intervening or superseding cause (#13 & #14). Each request is tied to a specific defense and seeks relevant evidence concerning the defense's factual basis. The term "supporting" is reasonably understandable. Defendant's response that Plaintiff could access documents through MyCase does not constitute a statement of compliance or inability to comply. Defendant also has not shown undue burden or explained why responsive documents are unavailable.

Requests nos. 15 & 16 seek contracts and amended contracts concerning the incident. These are specific and relevant to the underlying transactions. Defendant's objection challenges the definition of the term "supporting," but this term does not appear in either request. It therefore does not address the requests served.

Nos. 17, 22, 23, and 24 seek documents identified in Defendant's responses to FROG nos. 4.1, 15.1, 17.1, and 50.1. Defendant's response to no. 17 (that no documents were identified in FROG nos. 4.1) adequately addresses the request as framed. Defendant's original response to FROG 4.1 contains only objections and did not identify particular documents. Accordingly, no further response is required unless Defendant's supplemental response to FROG no. 4.1 identifies responsive documents. In contrast, Defendant's responses to nos. 22, 23 & 24 are incomplete. No. 22 seeks documents identified in FROG no. 15.1. Because that response identified some documents, Defendant's statement that no documents were identified is incomplete. The motion is therefore be granted as to no. 22. As to nos. 23 & 24, Defendant's objections do not address the requests and do not state whether he will comply or cannot comply. The court also grants the motion as to nos. 23 & 24.

Requests nos. 25 to 27 seek documents concerning Defendant's representation of Plaintiff in the *Geaux Industries* and *Fairprice Enterprises* matters, including correspondence, emails, pleadings, discovery, contracts, notes, bills, and payment records. These are relevant to the scope and performance of Defendant's alleged attorney-client duties. Plaintiff's access to the MyCase database does not relieve Defendant of his duty to provide documents. The partial overlap between nos. 25 and 26 does not justify withholding documents.

Nos. 28 to 30 seek communications with Steven A. Booska, Plaintiff, and Kevin E. Monson. Booska is a person with whom Defendant allegedly communicated concerning the settlement of the underlying matters. Monson appears to be an individual involved and was copied on discovery responses. The record does not clearly establish their titles or roles. The requests appear to be relevant to Defendant's handling of the underlying matters, but the requests as framed lack subject-matter and temporal limits. As such, the court compels further responses only as to communications concerning Plaintiff, the underlying actions, or this litigation. The court grants the motion as to nos. 28 to 30, subject to these limits. Any privilege claim shall be supported by a privilege log.

Nos. 31 & 32 are about contracts and payments. No. 31 seeks contracts and related communications with Plaintiff. No. 32 seeks records of payments made by Plaintiff. These are relevant to the attorney-client relationship. Defendant's responses that Plaintiff could access documents through MyCase are insufficient. Defendant's objection challenges the definition of the term "supporting," but this term does not appear in either request. The court grants the motion as to nos. 31-32.

FROGs

Plaintiff argues that Defendant gave unverified, evasive, and incomplete responses to Form Interrogatories, Set One ("FROGs") nos. 4.1, 12.1, 15.1, 17.1, and 50.1-50.6. Plaintiff contends that Defendant improperly withheld basic insurance coverage information, failed to identify witnesses, and refused to state facts supporting defenses and contentions. Plaintiff requests \$3,210 in sanctions.

In opposition, Defendant argues that the term “INCIDENT” is insufficiently defined. Defendant argues that the interrogatories seek information equally available to Plaintiff. Defendant argues insufficient meet and confer. He also submits a belated verification. He requests \$1,566 in cross-sanctions.

In reply, Plaintiff asserts that Defendant promised but never served supplemental responses. Plaintiff further argues that the late verification does not cure the deficiencies.

A party may file a motion compelling further answers to interrogatories if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (CCP § 2030.300.) Upon a timely motion to compel further, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) “Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits.” (CCP § 2030.220(a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (*Id.* at § 2030.220(b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information....” (*Id.* at § 2030.220(c).)

Request no. 4.1 seeks information about insurance that may cover the claims. Insurance information is discoverable under CCP § 2017.210. Defendant’s relevance, collateral-source, and privacy objections are unpersuasive

No. 12.1 seeks the identities and contact information of persons who witnessed or know about the incident. The pleadings identify the relevant events, and Defendant’s response to no. 15.1 identifies persons with knowledge. His response to no. 12.1 is therefore incomplete.

As to nos. 15.1 and 17.1, they seek factual bases for defenses and admissions. Defendant provided a general narrative or objections rather than separately identifying the required facts, witnesses, and documents. The interrogatories seek factual contention but not work products or expert discovery. The objections do not justify withholding information.

Finally, nos. 50.1-50.3, 50.5, and 50.6 seek information concerning the alleged agreements, breaches of agreement, excused performance, enforceability, and ambiguity. Defendant’s responses do not fully address the requested contentions. The interrogatories seek contentions, but not expert testimony or legal research as objected.

For no. 50.4, it asks whether any alleged agreement was terminated and, if so, identify each agreement terminated, the termination date, and basis for termination. Defendant identified the attorney-client fee contract, stated that it was terminated “by mutual agreement,” and provided the date of 2/3/25. The later verification cures the verification defect. No further response is required.

RFAs

Plaintiff argues that Defendant failed to serve verified substantive responses to Requests for Admission, Set One (“RFAs”), nos. 1 and 6-11. Plaintiff contends that the requests properly seek facts regarding the alleged malpractice. Plaintiff requests \$3,210 in sanctions.

In opposition, Defendant argues that the requests call for conclusions, expert opinions, and speculation. Defendant asserts that objection-only responses did not require verification. He nonetheless submits a belated verification. He also argues Plaintiff’s separate statement inaccurately reproduces the responses to nos. 8-11. He requests \$1,620 in cross-sanctions.

Defendant correctly argues that objection-only responses need not be verified. (CCP § 2033.240(a).) Nevertheless, “when a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law. He should make the admission if he is able to do so and does not in good faith intend to contest the issue at trial, thereby ‘setting at rest a triable issue.’ [citation.] Otherwise he should set forth in detail the reasons why he cannot truthfully admit or deny the request.” (*Burke v. Superior Court* (1969) 71 Cal.2d 276, 282.)

Nos. 1, 6, & 7 concern whether Plaintiff had “a meritorious and sufficient defense” to the *Geaux Industries* matter, whether Defendant “failed to respond to the summons and complaint” in *Geaux Industries*, and whether Defendant “failed to attempt to set aside the default judgment entered against Plaintiff” in that case. Defendant’s objections do not justify refusing to answer.

The separate statement, however, appears to reproduce the response to no. 7 as the response to nos. 8-11, according to Defendant. Plaintiff did not substantively address this contention with his reply. A separate statement must accurately reproduce the text of each disputed response (CRC rule 3.1345(c)(2)), and Plaintiff failed to do so here. The court denies the motion as to nos. 8 to 11.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505034	PISCOPO vs CGP MAINTENANCE & CONSTRUCTION SERVICES, INC	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling: Intervenor BERKSHIRE HATHAWAY GUARD INSURANCE COMPANIES’ unopposed Motion to intervene is granted.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505180	CITY OF RIVERSIDE vs LOPEZ	MOTION TO APPOINT RECEIVER

Tentative Ruling: Petitioner City of Riverside’ Motion to Appoint a Receiver is granted.